

Memorandum and Articles of Association (MOA & AOA) of Tesla Inc.

tesla

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1. NAME AND REGISTERED OFFICE

The name of the Company is Tesla Inc. (hereinafter referred to as 'the Company').

The registered office of the Company is situated at 1 Tesla Road, Austin, Texas, 78725, USA. The Company shall have a corporate seal bearing its name.

2. OBJECTS OF THE COMPANY

The primary objects for which the Company is established are:

1. To design, develop, manufacture, assemble, and sell electric vehicles, energy storage systems, solar products, and related components.
2. To engage in research, development, and innovation in sustainable energy solutions, including but not limited to battery technology, autonomous driving systems, and renewable energy integration.
3. To provide energy generation, storage, and management services for residential, commercial, and industrial applications.
4. To establish, maintain, and operate manufacturing facilities, service centers, charging networks, and other infrastructure necessary for the Company's operations.
5. To enter into partnerships, joint ventures, and collaborations with other entities for the advancement of the Company's objectives.
6. To invest in, acquire, or merge with other companies, assets, or intellectual properties that align with the Company's business interests.
7. To comply with all applicable laws, regulations, and standards in the jurisdictions where the Company operates.

3. SHARE CAPITAL

The authorized share capital of the Company is \$10,000,000,000 (Ten Billion US Dollars), divided into 2,000,000,000 (Two Billion) equity shares of \$5 (Five US Dollars) each.

The Company may, from time to time, increase or reduce its share capital, issue bonus shares, or subdivide its shares in accordance with the applicable laws and regulations.

The Board of Directors is authorized to allot, issue, and dispose of shares, debentures, or other securities as deemed necessary for the Company's growth and operations.

Particulars	Details
Authorized Share Capital	\$10,000,000,000
Number of Shares	2,000,000,000

Particulars	Details
Face Value per Share	\$5
Issued and Paid-up Capital (as of July 2026)	\$8,500,000,000

4. DIRECTORS AND MANAGEMENT

The management of the Company shall be vested in the Board of Directors, which shall consist of not less than three (3) and not more than fifteen (15) directors.

The following individuals are appointed as the initial directors of the Company:

1. Elon R. Musk – Chief Executive Officer and Technoking of Tesla
2. Robyn M. Denholm – Chair of the Board
3. Ira Ehrenpreis – Independent Director
4. Kimbal Musk – Independent Director
5. James Murdoch – Independent Director

The Board of Directors shall have the power to appoint additional directors, fill casual vacancies, and determine the remuneration of directors in accordance with the Company's policies and applicable laws.

Director Name	Position	Appointment Date
Elon R. Musk	Chief Executive Officer and Technoking	2004
Robyn M. Denholm	Chair of the Board	2014
Ira Ehrenpreis	Independent Director	2017
Kimbal Musk	Independent Director	2018
James Murdoch	Independent Director	2017

5. POWERS OF THE BOARD

The Board of Directors shall have the following powers, subject to the provisions of the applicable laws and the Articles of Association:

1. To manage the business and affairs of the Company, including the appointment and removal of officers, employees, and agents.
2. To authorize the execution of contracts, agreements, and other legal instruments on behalf of the Company.
3. To borrow money, issue debentures, and secure the repayment of loans by creating charges on the Company's assets.
4. To invest the funds of the Company in securities, properties, or other ventures as deemed appropriate.
5. To declare dividends, recommend bonus issues, and approve financial statements in accordance with regulatory requirements.
6. To establish committees, delegate powers, and appoint advisors or consultants for the efficient conduct of the Company's business.
7. To amend the Articles of Association, subject to the approval of the shareholders and compliance with applicable laws.

6. MEETINGS OF THE BOARD

The Board of Directors shall meet at least four (4) times in each financial year, with a maximum gap of one hundred and twenty (120) days between two consecutive meetings.

A quorum for a Board meeting shall be one-third of the total number of directors or two (2) directors, whichever is higher.

Notice of Board meetings shall be given in writing at least seven (7) days prior to the date of the meeting, unless waived by the directors.

Minutes of all Board meetings shall be recorded, maintained, and signed by the Chair of the meeting or the subsequent meeting.

Particulars	Details
Minimum Meetings per Year	4
Quorum Requirement	1/3 of total directors or 2 directors, whichever is higher
Notice Period	7 days (unless waived)
Minutes Maintenance	Mandatory, signed by Chair

7. SHAREHOLDERS' MEETINGS

The Annual General Meeting (AGM) of the Company shall be held once in every calendar year, within six (6) months from the end of the financial year.

Extraordinary General Meetings (EGMs) may be convened by the Board of Directors or upon the requisition of shareholders holding not less than one-tenth (1/10) of the paid-up share capital of the Company.

Notice of general meetings shall be given in writing at least twenty-one (21) days prior to the date of the meeting.

A quorum for a general meeting shall be shareholders holding not less than one-tenth (1/10) of the paid-up share capital of the Company.

Particulars	Details
AGM Frequency	Annually
AGM Timeline	Within 6 months of financial year-end
EGM Requisition Threshold	Shareholders holding $\geq 10\%$ of paid-up capital
Notice Period for General Meetings	21 days
Quorum for General Meetings	Shareholders holding $\geq 10\%$ of paid-up capital

8. AMENDMENTS AND COMPLIANCE

Any amendments to the Memorandum or Articles of Association shall be made in accordance with the provisions of the applicable laws and shall require the approval of the shareholders by a special resolution.

The Company shall comply with all statutory and regulatory requirements, including but not limited to filings with the Registrar of Companies, tax authorities, and other governmental agencies.

The Board of Directors shall ensure that the Company's operations, financial statements, and disclosures are in accordance with the highest standards of corporate governance and transparency.